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#	Case Name	Tentative
	2023-01318557 Alexander vs. Bhavsar	The motion is denied insofar as Defendants seek wholesale exclusion of Dr. Zaks's testimony or all of his standard-of-care opinions. Dr. Zaks possesses sufficient education, training, experience, and knowledge in dermatology and dermatologic treatment to satisfy the threshold requirements of Evidence Code section 720. His lack of experience personally performing the particular Pearl Fractional procedure and the concessions made during his deposition concerning the device in question are proper subjects for cross-examination and generally affect the weight of his opinions, not their admissibility. The motion is granted to the limited extent that Dr. Zaks may not opine that the laser device malfunctioned, as he disclaimed any such opinion to a reasonable medical probability. He also may not assume that Defendant failed to perform test spots or ignored visible manifestations of pain unless evidence admitted at trial supplies a factual basis for those assumptions. Dr. Zaks shall be limited to the substance of the opinions and bases disclosed during his deposition and may not offer materially new standard-of-care or causation opinions at trial.

	Dr. Zaks shall be limited to the substance of the opinions and bases disclosed in his report and deposition. He may explain, amplify, and defend those disclosed opinions, but he may not offer a materially new opinion, a new theory of breach or causation, or a materially new basis for an opinion that he did not disclose at deposition. His testimony that he might change an opinion after rereading the record does not preserve a right to do so at trial. Whether particular testimony constitutes permissible explanation or an undisclosed new opinion will be determined when the testimony is offered. Other foundational objections may be raised when the particular testimony is offered. The Court notes further that Plaintiffs' opposition exceeds the page limitation prescribed by California Rules of Court, rule 3.1113(d), and was filed without obtaining leave of court. A memorandum exceeding the applicable page limit is treated in the same manner as a late-filed paper. (Cal. Rules of Court, rule 3.1113(g).) In the exercise of its discretion, the court has considered the opposition. Plaintiff is admonished that her self-represented status does not excuse compliance with the California Rules of Court and that future noncompliant filings may be disregarded.
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